

TEXAS ADMINISTRATIVE CODE: As in effect on 5/11/2026.

## TITLE 16. ECONOMIC REGULATION

### PART 4. TEXAS DEPARTMENT OF LICENSING AND REGULATION

#### CHAPTER 83. BARBERS AND COSMETOLOGISTS

##### §83.78. Responsibilities of Mobile Establishment.

(a) A mobile establishment must comply with all health and safety requirements and all other requirements of the Act and this chapter for establishments or specialty establishments, as applicable, except as modified by this section or as otherwise indicated.

(b) A mobile establishment license holder must maintain a permanent physical address as required by §83.22(c). The mobile establishment must notify the department in writing of any change in mailing address within 10 calendar days of the change.

(c) Records of the following must be kept within the mobile establishment unit and made available for inspection by department personnel: appointments; itineraries, if the establishment submits itineraries to the department as provided by subsection (d); license numbers of employees and independent contractors; and vehicle identification numbers of the mobile establishment. Records of appointments and itineraries must be kept for a period of at least one year from the date the record is made.

(d) A mobile establishment must either:

(1) have a Global Positioning System (GPS) tracking device that enables the department to track the location of the mobile establishment over the internet and meet the following requirements:

(A) the device must be on board and functioning at all times the mobile establishment is in operation or open for business; and

(B) the mobile establishment must provide the department with all information necessary to track the establishment over the internet; or

(2) submit to the department, in a manner specified by the department, a weekly itinerary showing the dates, exact locations, and times of service to be provided.

The license holder must submit the itinerary not less than 7 calendar days prior to the beginning of service described in the itinerary and must submit to the department any changes in the itinerary not less than 24 hours prior to the change. A mobile establishment must follow the itinerary in providing service and notify the department of any changes.

(e) Furniture must be anchored to the mobile establishment unit.

(f) All chemicals in the mobile establishment must be stored in cabinets secured with safety catches and must be stored separate and apart from other articles or equipment in the establishment.

(g) A mobile establishment must display on both sides of the exterior of the mobile establishment, the mobile establishment's license number and a sign stating the name of the establishment.

(h) A mobile establishment must have a water heater that provides fresh, hot water continuously and on demand.

(i) A mobile establishment unit must have a fresh water tank holding a sufficient amount of fresh water to perform the day's business. If a mobile establishment unit's fresh water supply is depleted, operation must cease until the supply is replenished.

(j) A mobile establishment must have a functioning restroom available for use on the premises where the mobile establishment is located when providing services.

(k) No services may be performed outside the mobile establishment or while the mobile establishment is in motion.

(l) A mobile establishment may not be used as a residence or for any other purpose besides providing barbering or cosmetology services.